



File No.: EXP202306324

RESOLUTION OF

WARNING PROCEDURE

Of the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on April 30, 2023. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

The complainant states that they are a neighbor of the respondent and that the latter has installed a surveillance camera that, due to its location and orientation, is capable of capturing images of their home.

Along with the notification, images of the location of the respondent's surveillance system are provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer and request for information was notified to the respondent on May 30, 2023, via postal service, in accordance with the provisions of Articles 41 and 42 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, as evidenced by the delivery receipt in the file. The respondent replied on June 10, 2023, stating that the cameras were installed for security reasons, as one of their cats had been poisoned, and they believe it was likely done by a neighbor, fearing for the safety of their minor children.

The system consists of 4 cameras, indicating that they do not capture images of neighboring properties, but rather from a distance. The cameras only record when activated by an event, and according to the respondent, they do not store images because when the application alerts them, they view the image, and if nothing occurs, it is deleted.

The images are only viewed on the respondent's mobile device through an application from the device brand.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

They provide images from the four cameras, and all, except one, capture an area outside the respondent's property. The most problematic is the one from the gazebo, as it captures the neighbor's terrace, which, although it has a fence, is not opaque.

THIRD: On July 30, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On February 8, 2024, the Director of the Spanish Agency for Data Protection decided to initiate a warning procedure against the respondent for the alleged infringement of Article 5.1.c) and Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on February 9, 2024, as evidenced by the acknowledgment of receipt in the file.

SIXTH: On February 12, 2024, a written statement of allegations was received from the respondent, in which, in summary, the measures adopted are explained, including the following considerations:

“Exposition of adopted measures:

- Reorientation of the camera previously named "GAZEBO," now named "POOL." This relocation was carried out in September 2023, upon selling the house (...), considering that there is no longer a risk of something being thrown from ***ADDRESS.1, including rat poison. The camera is redirected towards the access door to my home from the pool.
- Reorientation of the camera previously named "ENTRANCE," now "PEDESTRIAN ENTRANCE," more towards the main door of the house. A privacy mask is introduced to exclude any area outside the property from the field of vision.
- Reorientation of the camera previously named "WALL," now "CAR ENTRANCE," further down, since, as with the first camera, being the wall adjacent to (...) and having sold the house, there is no risk of objects being thrown from the complainant's house. A privacy mask is introduced to exclude any area outside the property from the field of vision.

The camera named "GARAGE" only changes its name to "KITCHEN."

The four cameras aim to monitor and deter thieves and squatters, unfortunately increasingly common in the area. They do NOT focus on or record common areas, other properties, or public roads. As I have already stated in my previous clarifications, the installation of the cameras was due to the death of one of my cats from poisoning. The complainant not only reported me to the AEPD but also to the Local Police of ***LOCALITY.1, for the placement of a camera among other accusations that have been proven false and for which I have been acquitted in a final judgment by the Mixed Court number X ***LOCALITY.2. What was not stated (...) is that the area entering the field of vision of my camera is an illegal construction that infringes on the privacy of several neighbors. They provide

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/10

your own photograph presented as evidence against me in the trial, where it is demonstrated that the privacy violated is that of my home..."

In light of all that has transpired, the following facts are considered proven by the Spanish Agency for Data Protection in the present procedure,

PROVEN FACTS

FIRST: On 30/04/2023, the respondent had a surveillance system installed consisting of 4 cameras, of which all but one captured an area that was outside the property of the respondent. Specifically, the camera installed in the gazebo captures the terrace of the claimant, which, although it has a fence, is not opaque, as stated in their response to the transfer of the complaint.

SECOND: On 12/02/2024, the cameras have been reoriented and privacy masks have been introduced, as evidenced in the allegations.

The aforementioned camera in the previous fact, previously referred to as "GAZEBO" and currently referred to as "POOL," was relocated in September 2023, and the camera was redirected towards the access door to the home from the pool, as described by the respondent in their allegations, providing the photo that verifies this.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.3 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations made

Regarding the allegations made against the initiation agreement of the present warning procedure, described in the factual background SIXTH, this Agency has nothing to object, given that the respondent has adopted the appropriate measures in the cameras located on their property to avoid capturing images of the public road or neighboring properties, although it is true that at the time of the complaint the cameras were improperly capturing images outside their property and did not have the required informative sign.

III

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation.

In Article 4.2 of the GDPR, the concept of “processing” of personal data is defined. Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (image of natural persons) carried out through the reported surveillance system is in accordance with the provisions of the GDPR.

IV

Principles relating to processing

Letter c) of Article 5.1 of the GDPR states:

“1. Personal data shall be:

(...)

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’);”

This means that in a specific processing, only the relevant personal data that is pertinent and strictly necessary to fulfill the purpose for which they are processed may be processed.

The processing must be adjusted and proportional to the purpose it is directed towards. The relevance in the processing of the data must occur both at the time of data collection and in the subsequent processing of the same.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the field of surveillance entails that images of the public road cannot be captured, since the processing of images in public places can only be carried out by the Security Forces and Corps with prior governmental authorization.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/10

That is to say, the cameras and video cameras installed for security purposes may not capture images of public roads unless it is essential for that purpose, or it is impossible to avoid it due to their location. In such an extraordinary case, the cameras may only capture the minimum portion necessary to ensure the safety of individuals and property, as well as their facilities.

Under no circumstances shall the use of surveillance practices extend beyond the environment subject to the installation, and in particular, they may not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space. The installed cameras may not capture images of private spaces belonging to third parties and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without justified cause is not permitted. Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces. Furthermore, it is

disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

On the other hand, Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide all the information indicated below at the time the data is obtained:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate safeguards and the means to obtain a copy of these or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent data processing:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/10

- a) the period during which personal data will be retained or, when that is not possible, the criteria used to determine this period;
- b) the existence of the right to request from the data controller access to personal data concerning the data subject, and its rectification or erasure, or the restriction of its processing, or to object to the processing, as well as the right to data portability;
- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, significant information about the logic involved, as well as the significance and the anticipated consequences of such processing for the data subject.

3. When the data controller intends to process personal data for a purpose other than that for which it was collected, it shall provide the data subject, prior to such further processing, information about that other purpose and any other relevant information pursuant to paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

V

Data Protection Regulation

Article 6.1 of the GDPR regarding the lawfulness of processing states:

1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in

order to take steps at the request of the data subject prior to entering into a contract;
c) processing is necessary for compliance with a legal obligation to which the data controller is subject;
d) processing is necessary to protect the vital interests of the data subject or of another natural person;
e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
7/10

interested parties who require the protection of personal data, particularly when the interested party is a child.

The provisions in paragraph f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.”

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems with the aim of preserving the safety of persons and property, as well as their facilities.

Article 12.1 of the GDPR indicates that anyone who carries out the processing of personal data, such as capturing images through a video surveillance system, must provide the interested parties with the information indicated in Articles 13 and 14 of the GDPR.

In order for the information duty provided in Article 12 of the GDPR to be fulfilled in a concise and understandable manner for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this regard, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data. The information in the second layer must be available in a location easily accessible to the affected party, whether it is an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment. This information duty will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether indoors or outdoors.

In the event that the video-monitored space has several entrances, such a designation of the video-monitored area must be available at each of them. This information must be provided in advance (consideration 39 of the GDPR). The objective is to make the context of the surveillance clear.

VI

Classification and qualification of the infringements

In accordance with the evidence available at this moment of resolution of the warning procedure, it is considered that the accused party has committed an infringement of the data minimization principle of Article 5.1.c of the GDPR, as it provides images from the four cameras it has installed, and all but one captured an area that was outside the property of the accused party. The most problematic was the one from the gazebo, as it captured the terrace of the neighbor, which, although

it had a fence, was not opaque.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

8/10

It is also considered that the accused party has committed an infringement of the information duties regarding data provided in Article 13 of the GDPR, in accordance with the provisions of Article 22 of the LOPDGDD, since in the field of vision of two of the installed cameras it was observed that they captured part of the public road, therefore the obligation to provide information through the display of informative posters had to be fulfilled, as the processing of the images would cease to be considered domestic by capturing beyond the property of the accused party.

The known facts constitute two infringements, attributable to the accused party, according to the provisions of Article 5.1.c) of the GDPR, which states that personal data shall be “adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed” and in Article 13 of the GDPR which advocates the obligation to inform the affected party about the processing of their personal data.

For the purposes of the statute of limitations for the infringements, the infringement attributed under Article 5.1.c) prescribes after three years, in accordance with Article 72.a) of the LOPDGDD, which qualifies the following conduct as very serious:

“a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.”

Regarding the infringement attributed under Article 13 of the GDPR, it also prescribes after three years, in accordance with Article 72.1.h of the LOPDGDD, which qualifies the following conduct as very serious:

“h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law.”

VII

Warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 “Powers” the following:

“Each supervisory authority shall have all of the following corrective powers:
(...)”

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)”

Likewise, Article 64 of the LOPDGDD, which regulates the “Form of initiation of the procedure and duration,” in its third paragraph provides that:

“3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

9/10

The Spanish Agency for Data Protection, after hearing from the data controller or processor, may issue a warning, as well as order the data controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified timeframe.

The procedure shall have a maximum duration of six months from the date of the initiation agreement.

After this period, it shall expire, and consequently, the proceedings shall be archived.

The provisions of the second and third paragraphs of section 2 of this article shall apply in this case. In the present case, once all the documentation in the file has been analyzed, it is deemed lawful to issue a warning to the party complained against for the infringement of articles 5.1.c and 13 of the GDPR, although it is true that the situation would have been resolved as stated in the allegations; currently, the video surveillance system would not be capturing space outside the property of the party complained against, as it did prior to the initiation agreement.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to B.B.B., with NIF ***NIF.1, for the infringements of articles 5.1.c) and 13 of the GDPR, classified under article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in art. 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

1403-16012024

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es